

ICO examples of processing likely to result in high risk

Source: <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/accountability-and-governance/data-protection-impact-assessments-dpias/examples-of-processing-likely-to-result-in-high-risk/>

Examples of processing 'likely to result in high risk' | ICO

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Examples of processing 'likely to result in high risk'

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The Data (Use and Access) Act 2025 got Royal Assent on 19 June 2025. All the provisions affecting data protection law and the Privacy and Electronic Regulations Communications are now in force. The Department for Science and Innovation (DSIT) has set out the commencement plans. You can

find more details on the Gov.uk website

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Examples of processing 'likely to result in high risk'

The following list details processing operations for which the ICO requires you to complete a DPIA as they are 'likely to result in high risk'. It is based on

guidelines

adopted by the European Data Protection Board (EDPB) on DPIAs (WP248rev01). Our list therefore complements and further specifies these guidelines.

For illustration, we have also included examples of existing areas of application. These should not be taken as definitive or exhaustive. In any event, this list does not affect your overriding obligation in Article 35(1), which is to assess any proposed processing operation against the requirement to complete DPIAs. The ICO also considers it best practice to do a DPIA, whether or not the processing is likely to result in a high risk.

Type of processing operation(s) requiring a DPIA

Description

Non-exhaustive examples of existing areas of application

Innovative technology

Processing involving the use of new technologies, or the novel application of existing technologies (including AI).

A DPIA is required for any intended processing operation(s) involving innovative use of technologies (or applying new technological and/or organisational solutions) when combined with any other criterion from WP248rev01.

Artificial intelligence, machine learning and deep learning

Connected and autonomous vehicles

Intelligent transport systems

Smart technologies

(including wearables)

Market research involving neuro-measurement (i.e. emotional response analysis and brain activity)

Some IoT applications, depending on the specific circumstances of the processing

Denial of service

Decisions about an individual's access to a product, service, opportunity or benefit which are based to any extent on automated decision-making (including profiling) or involves the processing of special- category data.

Credit checks

Mortgage or insurance applications

Other pre-check processes related to contracts (i.e. smartphones)

Large-scale profiling

Any profiling of individuals on a large scale

Data processed by Smart Meters or IoT applications

Hardware/software offering fitness/lifestyle monitoring

Social-media networks

Application of AI to existing process

Biometric data

Any processing of biometric data for the purpose of uniquely identifying an individual.

A DPIA is required for any intended processing operation(s) involving biometric data for the purpose of uniquely identifying an individual, when combined with any other criterion from WP248rev01

Facial recognition systems

Workplace access systems/identity verification

Access control/identity verification for hardware/applications (including voice recognition/fingerprint/facial recognition)

Genetic data

Any processing of genetic data, other than that processed by an individual GP or health professional for the provision of health care direct to the data subject.

A DPIA is required for any intended processing operation(s) involving genetic data when combined with any other criterion from WP248rev01

Medical diagnosis

DNA testing

Medical research

Data matching

Combining, comparing or matching personal data obtained from multiple sources

Fraud prevention

Direct marketing

Monitoring personal use/uptake of statutory services or benefits

Federated identity assurance services

Invisible processing

Processing of personal data that has not been obtained direct from the data subject in circumstances where the controller considers that compliance with Article 14 would prove impossible or involve disproportionate effort (as provided by Article 14.5(b)).

A DPIA is required for any intended processing operation(s) involving where the controller is relying on Article 14.5(b) when combined with any other criterion from WP248rev01

List brokering

Direct marketing

Online tracking by third parties

Online advertising

Data aggregation/data aggregation platforms

Re-use of publicly available data

Tracking

Processing which involves tracking an individual's geolocation or behaviour, including but not limited to the online environment.

A DPIA is required for any intended processing operation involving geolocation data when combined with any other criterion from WP248rev01

Social networks, software applications

Hardware/software offering fitness/lifestyle/health monitoring

IoT devices, applications and platforms

Online advertising

Web and cross-device tracking

Data aggregation / data aggregation platforms

Eye tracking

Data processing at the workplace

Data processing in the context of home and remote working

Processing location data of employees

Loyalty schemes

Tracing services (tele-matching, tele-appending)

Wealth profiling – identification of high net-worth individuals for the purposes of direct marketing

Targeting of children/other vulnerable individuals for marketing, profiling for auto decision making or the offer of online services

The use of the personal data of children or other vulnerable individuals for marketing purposes, profiling or other automated decision-making, or if you intend to offer online services directly to children.

Connected toys

Social networks

Risk of physical harm

Where the processing is of such a nature that a personal data breach could jeopardise the [physical] health or safety of individuals.

Whistleblowing/complaint procedures

Social care records

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